

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING TITLE 10, VEHICLES AND TRAFFIC, CHAPTER 10.80, BICYCLES, OF THE CHEYENNE CITY CODE FOR THE PURPOSE OF REMOVING CERTAIN CHAPTER SECTIONS RELATING TO BICYCLE LICENSING REQUIREMENTS.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Title 10, Vehicles and Traffic, Chapter 10.80, Bicycles, of the Cheyenne City Code, is hereby amended as set out in this ordinance for the purpose of removing certain chapter sections relating to bicycle licensing requirements. Existing sections of Chapter 10.80, Bicycles, not set out in this ordinance remain unchanged.

~~10.80.090~~ License required.

~~No person who resides within this city shall ride or propel a bicycle on any street or upon any public path set aside for the exclusive use of bicycles unless such bicycle has been licensed and a license plate is attached thereto as provided under this chapter.~~

~~10.80.100~~ License application.

~~Application for a bicycle license and license plate shall be made upon a form provided by the city and shall be made to the city clerk.~~

~~10.80.110~~ License fee.

~~A license fee of ten dollars (\$10.00) shall be paid to the city for new and used bicycles before a bicycle license is granted. The license will be good for the ownership of the bicycle.~~

~~10.80.120~~ License issuance.

~~A. The city clerk upon receiving proper application therefor is authorized to issue a bicycle license.~~

~~B. The city clerk shall not issue a license for any bicycle when he or she knows or has reasonable grounds to believe that the applicant is not the owner of or entitled to the possession of such bicycle.~~

~~C. A merchant who sells bicycles as part of his or her business may collect the license fee at his or her place of business on the bicycles he or she sells or services, subject to the regulations adopted by the city clerk. The merchant shall keep a record of each license he or she collects and shall, within ten (10) days, turn the license fees over to the city clerk together with the information indicated in subsection D of this section.~~

~~D. The city clerk shall keep a record of the number of each license, the date issued, the name and address of the person to whom issued, and the number on the frame of the bicycle for which issued, and a record of all bicycle license fees collected by him or her.~~

10.80.130 Attachment of plate.

~~A. The city clerk upon issuing a bicycle license shall also issue a license plate bearing the license number assigned to the bicycle, the name of the city, the calendar year for which issued, and the expiration date thereof.~~

~~B. The license plate shall be firmly attached to the rear mudguard or frame of the bicycle for which issued in such position as to be plainly visible from the rear.~~

~~C. No person shall remove a license plate from a bicycle during the period for which issued except upon a transfer of ownership or in the event the bicycle is dismantled and no longer operated upon any street in this city.~~

10.80.140 Inspection.

~~The chief of police, or an officer assigned such responsibility, may inspect each bicycle before licensing the same and may refuse a license for any bicycle which he or she determines is in unsafe mechanical condition.~~

10.80.150 License renewal.

~~Upon the expiration of any bicycle license the same may be renewed upon application and payment of the same fee as upon an original application.~~

10.80.160 Transfer of ownership.

~~Upon the sale or other transfer of a licensed bicycle, the licensee shall remove the license plate and shall either surrender the same to the city clerk or may, upon proper application but without payment of an additional fee, have the plate assigned to another bicycle owned by the applicant.~~

10.80.170 Rental agencies.

~~A rental agency shall not rent or offer any bicycle for rent unless the bicycle is licensed and a license plate is attached thereto as provided herein and such bicycle is equipped with the lamps and other equipment required by the State Vehicle Code.~~

10.80.180 Bicycle dealers.

~~Every person engaged in the business of buying or selling new or secondhand bicycles shall make a monthly report to the chief of police of every bicycle purchased or sold by such dealer, giving the name and address of the person from whom purchased or to whom sold, a description~~

~~of such bicycle by name or make, the frame number thereof, and the number of license plate, if any, found thereon.~~

10.80.190 - Violations—Penalties.

IT IS UNLAWFUL FOR ANY PERSON TO VIOLATE ANY OF THE PROVISIONS OF THIS CHAPTER. Every person convicted of a violation of any provision of this chapter shall be fined in accordance with Section 1.24.010 **OF CITY CODE.** ~~or by removal and detention of the license plate from such person's bicycle or by the impounding by the chief of police of such person's bicycle.~~

Section 2. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

(S E A L)

RICHARD L. KAYSEN, MAYOR

ATTEST:

CAROL INTLEKOFER, CITY CLERK

Publish: Wyoming Tribune-Eagle